

Court No. - 21

Case :- WRIT - C No. - 33874 of 2021

Petitioner :- Dharmendra Yadav

Respondent :- State Of U.P Thru Secretary Home Lknw. And
Another

Counsel for Petitioner :- Pankaj Dwivedi

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Dr. Kaushal Jayendra Thaker,J.

Hon'ble Ajai Tyagi,J.

This matter has been listed before this Court by the orders of
Hon'ble The Chief Justice.

None is present for the petitioner even in the revised call.

List the matter on 17th January, 2022 as fresh.

Order Date :- 21.12.2021

Ashutosh Pandey

Court No. - 3

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Respondent :- State Of U.P Thru Secretary Home Lknw. And Another

Counsel for Petitioner :- Pankaj Dwivedi

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following reliefs:

"(i) Issue a writ order or direction in the nature of certiorari quashing the demand notice dated 12.10.2021 issued by the respondent No. 2 under section 3 read with 5 of U.P. Government Electrical Undertakings (Dues Recovery) Act 1958 (U.P. Act No. XVI of 1958) (Annexure-3 to the writ petition).

(ii) Issue any other suitable writ, order or direction which this Hon'ble Court may deem fit and proper in the circumstances of the case."

Learned counsel for the respondent No.2/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is disposed off giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 20.5.2022

o.k.